

EXPULSION APPEAL HEARING

SCRIPT FOR BOARD OF EDUCATION PRESIDENT

1. THE BOARD PRESIDENT SHOULD RECITE THIS TEXT IN THE OPEN MEETING

The purpose of this part of this meeting is to hear the appeal of the Superintendent's decision regarding the recommended expulsion of a student attending Brecksville-Broadview Heights City School District. For the record, present are the student, the student's parents, and [anyone else present with student]. Ms. Jakimyszyn has requested that this appeal be heard in executive session, which is closed to the public.

The student's mother, on behalf of the student, has requested an appeal in executive session. Do I have a motion to adjourn to executive session, pursuant to Ohio Revised Code Sections 3313.66 and 121.22(G)(1), to consider the discipline or the investigation of charges against a public school student?

[The Board then votes (by roll call) on the "Motion to adjourn to executive session, pursuant to Ohio Revised Code Sections 3313.66 and 121.22(G)(1), to consider the discipline or the investigation of charges against a public school student." The motion to adjourn must be approved by a majority of a quorum of the Board.]

Ms. Jakimyszyn, the Board will now move to Executive Session. When the Board is ready to proceed with the hearing, I will ask the student and any other individuals who are here on behalf of the student and the members of the administration to join us.

2. THE BOARD PRESIDENT SHOULD RECITE THIS TEXT AT THE START OF THE HEARING

My name is Fred Pedersen. This hearing is being held at the request of Ms. Jakimyszyn to hear the appeal against the Superintendent's decision regarding the expulsion of her son, Jeremy Rossello. A verbatim record of this hearing is being made.

At this time, I would like to request that the spokesperson for the student and the spokesperson for the school district identify themselves. [Ms. Magyar and Ms. Jakimyszyn]

The hearing will be conducted in the following manner: The arguments *for* the discipline shall be presented first. The spokesperson for the school may begin with a brief opening statement summarizing the arguments in favor of the discipline. The spokesperson may then ask other persons to make statements to the Board regarding the incident which led to the expulsion. Those making statements may then be questioned by the spokesperson for the school, the spokesperson for the student, members of the Board or the Board's legal counsel. The spokesperson for the school should present any documents that he wishes the Board to consider to the Board members.

At the completion of this presentation, the spokesperson for the student may then make a brief statement summarizing the arguments *against* the discipline. The spokesperson may then ask other persons to make statements to the Board regarding the incident. Those making statements may be questioned by the school's spokesperson, members of the Board and the Board's legal counsel. The spokesperson for the student should present any documents that he wishes the Board to consider to the Board members.

At the close of the student's presentation, the spokespersons for the school and the student will be permitted to make brief closing statements summarizing their positions.

Because this hearing is being held in executive session, the only individuals who will be present for the hearing will be those directly involved in the hearing.

Should procedural or legal questions or issues arise during the course of this hearing, I may call upon other members of the Board or the Board's attorney for advice with regard to appropriate procedure or legality before rendering a decision.

Before individuals are asked to make statements to the Board, they will be asked to subscribe to a simple oath which will be administered by the court reporter.

3. HEARING BEGINS – FOLLOW CHECKLIST OF STEPS

CHECKLIST

- Request that the court reporter will swear in all witnesses who will be giving testimony [individually or as a group.]
- I will now call upon the school's initial spokesperson, Joelle Magyar, to make a brief statement regarding the reasons for the discipline and arguments in support of the discipline.
- [When District spokesperson is done]. I now request that [any other relevant administrator(s)], provide a brief statement.
 - Ms. Magyar, do you have any questions for the District administrator?
 - Ms. Jakimyszyn, do you wish an opportunity to question the District administrators [either Ms. Magyar or any other administrator who provided information]?
 - Do any Board members or [the Board's legal counsel – if present] have questions?
- [Upon completion of the testimony by the District administrators, call upon any remaining spokespersons [if any] for the school. After each witness has testified, ask whether the Student's spokesperson, Ms. Jakimyszyn, wishes to question the administrator(s) or staff member(s).]
- Ms. Magyar, if you have any documents that you would like the Board to consider as evidence in this matter, please provide copies to the Board members.

- Call upon the Student's spokesperson, Ms. Jakimyszyn, to make a statement on behalf of the Student. [The Student can also make a statement on his own behalf, but is not required to do so.]
 - Ms. Magyar, do you have any questions for Ms. Jakimyszyn?
 - Do any Board members [or the Board's legal counsel – if present] have questions?
- Are there are any additional witnesses who wish to testify on behalf of the Student?
 - Ms. Magyar, do you have any questions for Ms. Jakimyszyn?
 - Do any Board members or the Board's legal counsel have questions?
- Ms. Jakimyszyn, if you have any documents that you would like the Board to consider as evidence in this matter, please provide copies to the Board members.
- Now that both sides have had the opportunity to present their respective positions and all parties, and the members of the Board have had the opportunity to ask any questions, I am going to ask Ms. Magyar to summarize the school's position.
- I am now going to ask the Student's spokesperson, Ms. Jakimyszyn, to summarize the student's position.

4. THE BOARD PRESIDENT SHOULD RECITE THIS TEXT ONCE THE CLOSING STATEMENTS HAVE BEEN MADE:

- The Board will now excuse itself to deliberate over the evidence it has received separately from the school administrators and the student's representative. From this point forward, the Board will not receive or consider any additional evidence.

[NOTE: There should be no recording of this portion of the executive session.]

- [After deliberating and discussing the evidence, the Board will leave executive session and go into open session to take formal action on the disciplinary hearing.]
- [The Treasurer, on behalf of the Board of Education, will issue the parent and the student written notice of the Board's decision. The decision should be sent via certified mail, return receipt requested, with a copy via regular mail and show both forms of transmission on the face of the cover letter.]

5. THE BOARD PRESIDENT SHOULD RECITE THIS TEXT UPON RETURNING FROM DELIBERATIONS IN EXECUTIVE SESSION AND COMING INTO PUBLIC SESSION:

Having received all testimony of witnesses, documentary evidence, and other evidence, and having had an opportunity to deliberate the issues, I now believe it is appropriate to return to public session and to conduct a vote on this matter. Do I have a motion?

The Board then votes (by roll call) on the Resolution. [The Resolution must be approved by a majority of the full Board membership.]

6. THE BOARD PRESIDENT SHOULD RECITE THIS TEXT IF THE DISCIPLINE IS **UPHELD:**

The Board has voted to affirm Superintendent's decision to expel the Student for a period of one calendar year. The reasons for the Board's decision are as follows:

- Possession of drugs and drug paraphernalia on school property is a serious offense requiring serious action by the Board. The evidence presented substantiates that the student was, in fact, in possession of a dab pen containing a substance which tested positive for marijuana on District property, which he used in a school bathroom, in violation of the Code of Conduct and creating a significant risk to himself and others on District property. This is the Student's third incident occurring in a school bathroom.
- The Student has been disciplined previously for issues related to tardiness and school vandalism. Upon returning from the discipline, the Student was involved in a cafeteria incident in which the Student threw food at another student. Additionally, the Student has a pattern of tardiness and is not an active participant in class.
- Evidence provided by the student is not compelling in that the weight of the evidence substantiated the student's possession of a dab pen containing a substance which tested positive for marijuana on school grounds in violation of the Code of Conduct and Board policy.

- Such evidence includes but is not limited to the statements of witnesses and the inconsistency at the prior hearing levels between witnesses and the Student's statement.
- Further, the student's initial responses with regard to the matter indicated possible dishonesty in that the Student attempted to deny having been in possession of said dab pen containing marijuana even though reports of such possession have been substantiated.
- The possession of drugs and drug paraphernalia on District property creates a significant safety risk to all students, including the student at issue in this matter, and as a result requires an appropriately significant penalty to avoid future repeat behavior and to mitigate safety risks to all students and staff members on District property by maintaining a school environment free from illegal and/or inappropriate substances.

Please be aware that pursuant to Ohio Revised Code Section 2506, you have the right to appeal this decision to the Court of Common Pleas for Cuyahoga County. If you so choose to appeal, a notice of appeal must be filed with the Board and the Court within thirty (30) days in accordance with Revised Code Section 3313.66(E). This concludes the appeal hearing. Do I have a motion to adjourn the meeting?"

7. THE BOARD PRESIDENT SHOULD RECITE THIS TEXT IF THE DISCIPLINE IS MODIFIED:

The Board has voted to modify the discipline imposed by the Superintendent as follows: The Board of Education has determined that sufficient information has been provided to assign student to an alternative educational program through _____, 2022 in lieu of expulsion for violation of the Student Code of Conduct. Student will begin serving the expulsion on _____, 2021 and the expulsion will conclude on _____, 2022. The reasons for the Board's decision are as follows:

- In considering the evidence provided by the student, the circumstances that led to the altercation, and the mitigating factors of the student's intent and prior disciplinary history, the Board has determined that modifications to the expulsion are appropriate

in order to appropriately address the circumstances while providing the student with appropriate supports to avoid future repeated behavior and associated safety risks.

- [INSERT REASONS TO MODIFY]

Please be aware that pursuant to Ohio Revised Code Section 2506, you have the right to appeal this decision to the Court of Common Pleas for Cuyahoga County. If you so choose to appeal, a notice of appeal must be filed with the Board and Court within thirty (30) days in accordance with Revised Code Section 3313.66(E). This concludes the appeal hearing. Do I have a motion to adjourn the meeting?"

8. THE BOARD PRESIDENT SHOULD RECITE THIS TEXT IF THE DISCIPLINE IS REVERSED:

The Board has voted to reverse the discipline imposed by the Superintendent. The Student will be permitted to return to Brecksville-Broadview Heights High School on _____, 2021. This concludes the appeal hearing. Do I have a motion to adjourn the meeting?"